

WRITTEN SUBMISSIONS · 9 FEB 1998

Hearing submissions — part 1

TYPE	DATE	PARTIES
Pleadings / procedural document	9 Feb 1998	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

Franchisee's written submissions — hearing of 9 February 1998

Overview: written submissions (first part) filed on behalf of Mr Bernard Collorafi and the companies SEBOL, B et O and LES PINS, for the hearing of 9 February 1998.

Key points

The written submissions argue that the absence of an exclusivity clause does not authorise every practice and that the spirit of partnership of the franchise agreement prohibits the organisation of internal competition. They criticise McDonald's for opening a restaurant in Vallauris within the catchment area of SEBOL and B et O, reducing their turnover, in breach of article 3 of the code of ethics of the Fédération française de la franchise. Relying on a report by the expert Robert Gandur, they propose sustainable annual fees:

- SEBOL: 252,000 F excl. VAT
- B et O: 992,000 F excl. VAT
- LES PINS: 934,000 F excl. VAT

In the alternative, in the event of termination attributable to McDonald's, they claim damages of several million francs per company, 2,000,000 F for Mr Collorafi's non-material damage and an award under article 700.

Significance

Statement of the franchisee's grounds challenging the franchisor's development policy and the balance of the fees.

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Source: bernardcollorafi.org/en/documents/written-submissions-collorafi-internal-competition-vallauris-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.